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NEWSPAPER

30th NOV, 2018

ITEM WISE EDITORIALS

48th WEEK



TENSIONS BETWEEN UKRAINE & RUSSIA

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NEWSPAPER EDITORIALS

... DISCUSSION

30th NOVEMBER, 2018

Dire strait

Russia must be persuaded
to lower tensions with Ukraine

Russia's capture of three Ukrainian naval ships and over 20 crew members in the disputed Azov Sea has refocused international attention on the conflict on Europe's eastern corridors. The rapid escalation in tensions following the flare-up is evident. Kiev has declared martial law and demanded that the sailors be treated as prisoners of war. A court in Russian-annexed Crimea, meanwhile, has ordered many of them to be held in pre-trial detention, charging them with illegally entering its territorial waters. Ukraine insists that the patrol of the Kerch Strait, where the vessels were impounded, was authorised under a bilateral agreement with Moscow. A new bridge over the strait that connects mainland Russia with Crimea has raised concerns about Moscow's greater control and influence in the region. The latest incident coincides with the anniversary of the November 2001 Maidan Square protests in Ukraine demanding integration with Europe, which was the prelude to Russia's invasion of Ukraine's Crimea in 2014. The protracted conflict has so far claimed about 10,000 lives and displaced millions, and no lasting resolution is in sight. The 2014-15 Minsk peace accords prohibited air strikes and heavy artillery firing. But the dispute has dragged on into a smouldering low-intensity combat. The Ukraine-Russia conflict has also widened religious schisms. The independence granted to the Ukrainian Orthodox Church from the Russian entity in October was criticised by Moscow. In turn, the election this month of the legislatures of two breakaway enclaves of Kiev, with Moscow's endorsement, drew criticism from Ukraine, leading European powers and the U.S. as violations of the Minsk accords.

There has been renewed Western diplomatic pressure since the weekend's skirmishes, with the UN Security Council and NATO calling on Moscow and Kiev to de-escalate tensions. But besides forcing Russian President Vladimir Putin to tighten his rhetoric vis-à-vis the big powers, the hardships from the economic sanctions since Crimea's occupation have achieved little by way of confidence-building in the region. European powers are divided between those advocating greater diplomatic engagement with the Kremlin and others wanting to press with further sanctions to punish perceived Russian political interference. But there has been little appreciation of the provocation for Moscow from NATO's continued expansion into the former Eastern Europe and the erstwhile USSR. The geopolitical imperative of greater engagement with Moscow has never been more urgent, as hawkish in the U.S. administration make no secret of their preference for confrontation over dialogue. The recent escalations could serve well the leaders of both Russia and Ukraine to divert attention from the sagging popularity levels at home. Ukrainian President Petro Poroshenko faces a general election next year, which, it is widely forecast, he will lose. But the humanitarian situation arising from the continuing conflict brooks no delay in arriving at a speedy resolution.

UPSC CSE – GS II

GS II ... International Relations

Effect of policies and politics of developed and developing countries on India's interests, Indian diaspora.

5 Dire strait

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UKRAINE

MOLDOVA

Odessa

Mariupol

SEA OF AZOV

Crimea

Kerch

RUSSIA

Russian FSB
seizes boats

NEWS REPORT



- 1 At least three of the Ukrainian sailors were wounded as tensions spilled over near the Kerch Strait, the passage between the Black Sea and the Sea of Azov off the Coast of Crimea.

- 2 The three boats were sailing from Odessa to Mariupol, a major Ukrainian port.
- 3 A bilateral treaty of 2003 gives both countries the right to patrol the waters, but Russia's decision to open a bridge across the Kerch Strait this year has exacerbated tensions.
- 4 Ukraine says Russia is deliberately blockading passage to ports, preventing ships from getting through the Kerch Strait.

The incumbent President is in the run-up to the Ukrainian Presidential Elections in March, 2019.

WHAT IS THE CLAIM OF RUSSIA?

- 1 Russia says, it had temporarily closed the area for shipping and Ukrainian vessels entered its territory illegally carrying out provocative actions.
- 2 They have not submitted correct transit applications to ensure safe navigation.
- 3 They violated article 19 and 21 of UN Convention on the Law of the Sea, which outlines the right of a coastal state to provide maritime security.

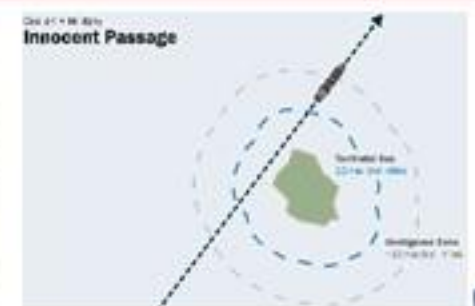


WHAT IS THE CLAIM OF UKRAINE?

- 1 Ukraine says, Russia violated international law, because the Black Sea is free for all shipping.
- 2 As per 2003 treaty, Ukrainian vessels have free access to the Sea of Azov and Kerch Strait.
- 3 It says, it is violation of Articles 38 and 44 of UN Convention on the Law of the Sea, which clearly and strongly bans the obstruction of peaceful transit across the Kerch Strait.

WHAT THE UN CONVENTION ON THE LAW OF THE SEA (UNCLOS), 1982 SAYS?

- 1 All the ships, including foreign warships, enjoy the right of Innocent Passage within another State's Territorial Sea.
- 2 It is Innocent Passage, as long as it is not prejudicial to the peace, good order or security of the coastal state that includes threat or use of force, exercise or practice with weapons or any act of propaganda affecting the security of the State.
- 3 Under the international law, a country would have the right to seize another warship, only if the warship was acting in a hostile manner.
- 4 There is also a Convention to ensure that ports which can only be reached by a single route to the strait always remain accessible.



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